

9:00 A.M.

Calendar Line # 1
Case Name Ross Brooks vs V& Victoria, LLC et al
Case No. 22CV408816
Motion to Compel Further Responses to Discovery; Motion for Admissions Deem Admitted; and Sanctions The moving party/Cross-Defendants Jojan Thomas Anthony and Jameskutty K. Matthew filed the motions to compel a <i>total of 235 separate further discovery responses</i> as follows: request for further responses to requests numbers 1- 178; Form interrogatories 3.6, 12,1, 12.4-12.7, 15.1, 16.1, and 17.1; and request for production numbers 2-7; and cross defendant Anthonys further request for responses to 1 through 42. On June 11, 2026, the moving party requested a continuance on the motions and matter as parties agreed to a discovery facilitation meeting on June 26, 2026 with Ronald Digesti. The Court granted the continuance to this day. Cross-Defendants Jojan Thomas Anthony, Jayasankar Puliampatta, Jameskutty K. Matthew, Shaju Cherian, Matthew Sebastian, and Biju Joseph (“Anothony et al.”) and cross-defendant V& Victoria LLC were ordered to provide a joint statement no later than September 1, 2026, providing a cause status and discovery update. No joint statement was timely filed. The parties are ordered to appear. The Court will consider taking the motions OFF calendar.

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Calendar Line # 2
Case Name Wells Fargo Bank, N.A. vs Dung Tran
Case No. 22CV409329
Motion to Vacate and Enter Judgment
<u>I. BACKGROUND</u> Before the court is a collections case stemming from Plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”)’s Complaint filed on December 29, 2022, alleging four causes of actions, including breach of contract against Defendant Dung Tran (“Tran”). (Complaint). Plaintiff states that the underlying damages amounts to \$4,369.13. (<i>Id.</i>). On May 5, 2023, the parties filed a notice of settlement. Pursuant to the stipulation, Defendant agreed to a total of \$4,360.16 by way of monthly payments of \$273.00 or more beginning on March 26, 2023 through and including May 26, 2024, followed by a final payment of \$265.13 on or before June 26, 2024. (Motion, p. 3). On January 16, 2026, Plaintiff Wells Fargo filed this motion to vacate notice of settlement and enter judgment pursuant stipulation under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Tran on January 14, 2026. Plaintiff asserts that Defendant rendered \$4,087.13 and failed to remit any further payment. (<i>Id.</i>). On September 16, 2024, Plaintiff sent a letter informing Defendant about the outstanding payment and seeking default. (<i>Id.</i>). The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on September 1, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the moving papers, including the notice of motion and memorandum of points and authorities (“MPA”) (totaling 4 pages); Declaration of Edgar B. Lopez and attached Exhibits 1-2 (totaling 13 pages); notice of non-compliance (totaling 1 page); proof of service and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6). Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (<i>Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.</i> (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (<i>Levy v. Superior Court</i> (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”)). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (<i>J.B.B. Investment Partners, Ltd. v. Fair</i> (2014) 232 Cal.App.4th 974, 985). “Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Prods., Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (<i>Id.</i>) The court may